

SUPREME COURT · JUDGMENT DIGEST

The Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (SOUTHCO) & Anr. v. M/s Sri Seetaram Rice Mill

Civil Appeal No. 8859 of 2011 (arising out of SLP (C) No. 36166 of 2010) | Supreme Court of India | 20 October 2011 | (2012) 2 SCC 108

COURT	Supreme Court of India (Three-Judge Bench)
CORAM	Hon'ble Mr. Justice S.H. Kapadia CJI, Hon'ble Mr. Justice K.S. Radhakrishnan & Hon'ble Mr. Justice Swatanter Kumar
DATE OF JUDGMENT	20 October 2011 (Appeal filed under Civil Appellate Jurisdiction; leave granted)
NATURE OF PROCEEDING	Civil Appeal under Civil Appellate Jurisdiction, arising out of a Special Leave Petition to challenge a writ petition order of the High Court
PARTIES	The Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (SOUTHCO) & Anr. (appellants) v. M/s Sri Seetaram Rice Mill (respondent)
PROVISIONS	Sections 126, 127, 135 of the Electricity Act, 2003; Explanation to Section 126; Orissa Electricity Regulatory Commission Distribution (Conditions of Supply) Regulations, 2004 (Regulations 80, 82, 106); Article 226 of the Constitution of India
RESULT	Appeal allowed. The Supreme Court held that consumption of electricity in excess of sanctioned/connected load constitutes 'unauthorized use of electricity' under Section 126 of the Electricity Act, 2003, and the assessing officer has jurisdiction to issue a provisional assessment order. The expression 'unauthorized use' is to be interpreted broadly and purposively, not restrictively. The High Court erred in striking down the assessment order on the merits; it should have confined itself to jurisdictional issues and remitted the matter to the assessing officer for passage of a final order, giving the respondent an opportunity to file objections under Section 126(3). The High Court judgment is set aside and the matter is remanded to the Assessing Officer to pass a final order of assessment expeditiously.

POINT FOR DETERMINATION

- Whether, wherever a consumer consumes electricity in excess of the maximum of the contracted load, the provisions of Section 126 of the Electricity Act, 2003 are attracted on their true scope and interpretation.
- Whether the High Court, in the facts and circumstances of the case, was justified in interfering with the provisional order of assessment dated 25 July 2009, in exercise of its jurisdiction under Article 226 of the Constitution of India.

3. Whether the writ petition before the High Court under Article 226 of the Constitution of India was maintainable because of the availability of a statutory alternative remedy under Section 127 of the Electricity Act, 2003.

FACTS

A rice mill partnership obtained electrical supply from the grid corporation of Orissa Ltd. under a supply agreement dated 9 December 1997, classified as a ‘medium industry’ with a contract demand between 22 KVA and below 110 KVA. On 10 June 2009, an inspection and meter dump conducted by the Executive Engineer revealed that the maximum demand consumed was 142 KVA, exceeding the sanctioned load. The respondent mill had, according to the inspection report, consumed electricity without objection for the period.

On 25 July 2009, the Executive Engineer issued a provisional assessment order (No. 854) and intimation (No. 853) under Section 126 of the Electricity Act, 2003, alleging unauthorized use of electricity. The assessment was for the period June 2008 to August 2009 (15 months) at Rs. 7,77,300/-, computed at the rate for large industry (twice the tariff at Rs. 200 per KVA), as the overdrawal of maximum demand placed the consumer in a different tariff category. The respondent was required to file objections within 30 days and could deposit the amount within 7 days.

Rather than file objections before the assessing officer as prescribed under Section 126(3), the respondent challenged the provisional assessment order and intimation before the High Court of Orissa via writ petition No. WP(C) 12175 of 2009, contending that the Executive Engineer lacked jurisdiction and that the provisions of Section 126 were not attracted because overdrawal of maximum demand was not enumerated as ‘unauthorized use’ in the statutory definition. The High Court accepted this contention and quashed the assessment order, holding that the words ‘unauthorized use of electricity’ and ‘means’ in the Explanation to Section 126 were exhaustive and overdrawal of MD did not fall within the defined scope.

REASONING OF THE COURT

HEADNOTE

Consumption of electricity in excess of the sanctioned or connected load, in breach of the terms and conditions of supply and applicable regulations, constitutes ‘unauthorized use of electricity’ within the meaning of Section 126 of the Electricity Act, 2003. The expression ‘unauthorized use’ in the Explanation to Section 126, while illustrated by specific examples, is not exhaustively defined and encompasses any consumption violating contractual, regulatory, or statutory conditions of supply, including cases where consumption causes a change in tariff category. Sections 126 and 127 together form a complete code for assessment and appeal: the assessing officer has statutory power to issue provisional and final orders of assessment, and only the final order is appealable under Section 127. A writ petition challenging a provisional order may be entertained on grounds raising pure questions of law or the jurisdiction of the authority, but the High Court should remit matters of merit to the assessing officer; it should not substitute its judgment on the substantive question of whether unauthorized use occurred.

Legislative objects and scheme of the Electricity Act, 2003. The Electricity Act, 2003 was enacted to address the deteriorating performance of State Electricity Boards and to establish an independent regulatory regime. The Act introduced provisions for private sector participation, regulatory oversight, and safeguards against misuse and malpractices such as over-consumption of sanctioned electric load, which are not covered by the provisions relating to theft. There was a concerted legislative effort to prevent both unauthorized use of electricity and theft of electricity, with distinct provisions (Sections 126 and 135) serving different purposes. ¶ 2–3

Distinction between Section 126 (unauthorized use) and Section 135 (theft of electricity). Section 126 applies to unauthorized use and provides for civil assessment of charges payable by the consumer; it does not require proof of dishonest intention or mens rea. Section 135 deals with the criminal offence of theft of electricity and requires the element of dishonesty — an intention to cause wrongful gain or loss by unlawful means. The two provisions operate in different fields: Section 126 covers malpractices and unauthorized consumption regardless of intention, while Section 135 applies only where there is dishonest abstraction using specified prohibited methods (tampering, bypassing meters, etc.). A clear example of Section 126 application is where a consumer uses excessive load against the installed load simpliciter in violation of the terms and conditions of supply; an example of Section 135 would be providing a direct connection bypassing the installed meter with dishonest intention. ¶ 15–22

Principles of statutory interpretation: purposive vs. textual construction. A statute establishing a regulatory regime with fiscal implications should be interpreted purposively, having regard to its objects and reasons, rather than by narrow textual or literal construction. The maxims ‘ex visceribus actus’ (construction of the act as a whole) and ‘ut res magis valeat quam pereat’ (it is better to validate than invalidate) apply even to fiscal and penal statutes. A construction which would defeat the manifest purpose of the legislation should be avoided; courts must prefer an interpretation which improves the workability of the statute and achieves its objective to any interpretation leading to undesirable results. ¶ 10–14

The expression ‘means’ in the Explanation is not necessarily exhaustive. While fiscal and penal laws are generally construed strictly, this rule is not absolute. The use of the term ‘means’ in a definition clause does not invariably render that definition exhaustive. Depending upon the language of the section, the scheme of the Act, the object of the legislature and its intent, the expression ‘means’ can be construed liberally and treated as inclusive but not completely exhaustive. The expressions ‘any artificial means’ and ‘by a means not authorised by the licensee’ in the Explanation to Section 126 are themselves generic or general terms which cannot be exhaustive even linguistically. The legislature intentionally omitted to use the word ‘includes’ and used only ‘means’, intending to explain what unauthorized use would be without limiting it to the enumerated examples. ¶ 32–42

Unauthorized use encompasses consumption in excess of sanctioned load in violation of contractual and regulatory terms. On a cumulative reading of the terms and conditions of supply, the contract executed between the parties, and the provisions of the 2003 Act, consumption of electricity in excess of the sanctioned or connected load constitutes ‘unauthorized use’ of electricity under Section 126. Such overdrawal amounts to breach of contractual and statutory conditions and is prejudicial to the public, throwing the entire supply system out of gear, undermining its efficiency and efficacy, and causing voltage fluctuations. The negative language in the contract itself (“not more than 110 KVA”) declares the intent of the parties that an implied prohibition existed against consuming electricity in excess of the maximum load. Regulations 82 and 106 of the Conditions of Supply explicitly prescribe that a consumer shall not make use of power in excess of approved contract demand. ¶ 46, 49

Excess load consumption falls within Explanation clause (iv) – use ‘for a purpose other than authorised’. Consumption in excess of sanctioned load represents a change in the category to which the consumer belongs (e.g., from medium industry to large industry) and thus a change in the tariff and purpose for which supply was authorized. This falls squarely within Explanation clause (iv) of Section 126, which defines unauthorized use as electricity consumed ‘for the purpose other than for which the usage of electricity was Authorized’. The tariff structure reflects the purpose and intensity of consumption; an increase in sanctioned load implies a change in purpose. The respondent’s contention that only an actual change in purpose (e.g., from domestic to industrial) would trigger Section 126, not merely a change of category due to excess load, is without substance and is rejected. ¶ 49–50

Sections 126 and 127 together form a complete code for assessment and appeal. Sections 126 and 127 of the 2003 Act, read together, constitute a complete self-contained code governing the entire process for assessment of

unauthorized consumption and the right of appeal. Section 126(1) to (3) provide for: inspection, formation of conclusion, provisional assessment, service of notice, and opportunity to file objections within 30 days. Section 126(4) provides that a consumer may deposit the assessed amount within 7 days; Section 126(3) also provides that the assessing officer shall pass a final order of assessment within 30 days. Section 126(5)–(6) prescribe the method of computation (at twice the tariff applicable for the relevant category). Section 127 provides that any person aggrieved by the final order may prefer an appeal against it within the prescribed period of limitation. Critically, Section 127 provides appeal only against the ‘final order’ passed under Section 126; no appeal lies against the provisional order or the notice itself. ¶ 51

Writ jurisdiction under Article 226 when alternative remedy exists: scope and limitations. The High Court has discretion under Article 226 to entertain a writ petition despite the availability of an alternative statutory remedy, particularly in cases involving pure questions of law or challenges to the vires of the authority’s jurisdiction. However, the High Court should exercise such jurisdiction with circumspection. Where a case involves both jurisdictional and merits issues, the proper approach is for the High Court to confine itself to the jurisdictional question and remit matters of merit to the specialized authority for decision. The High Court erred in this case by examining and deciding whether Section 126 actually applied to the facts (a merits question) rather than remitting the matter to the Assessing Officer. The administration of justice is better served when courts entertain writ petitions only where they involve primary questions of jurisdiction and leave factual and substantive matters to the specialized tribunal. ¶ 53–57

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003 AND RELATED REGULATIONS

Section 126 — Assessment of Charges for Unauthorized Use

Section 126 of the Electricity Act, 2003 empowers an assessing officer to provisionally assess, after inspection of premises and equipments, the electricity charges payable by any person indulging in unauthorized use of electricity. The assessing officer shall: (1) form a conclusion from inspection records that the person is indulging in unauthorized use; (2) provisionally assess the electricity charges to the best of his judgment; (3) serve the order on the person in occupation or possession of the premises; and (4) afford an opportunity to file objections within 30 days, after which a final order of assessment shall be passed. Assessment shall be made for the entire period during which unauthorized use occurred, or if the period cannot be ascertained, for a period of 12 months immediately preceding the date of inspection, at a rate equal to twice the tariff applicable for the relevant category of services. ¶ 23–24

Explanation to Section 126 — Definition of ‘Unauthorized Use of Electricity’

The Explanation to Section 126 defines ‘unauthorized use of electricity’ as the usage of electricity: (i) by any artificial means; (ii) by a means not authorised by the concerned person, authority or licensee; (iii) through a tampered meter; (iv) for a purpose other than for which the usage was authorized; or (v) for premises or areas other than those for which supply was authorized. These examples are illustrative of the concept of unauthorized use, not exhaustive. Any consumption violating the statutory provisions, applicable regulations, or contractual terms and conditions of supply constitutes unauthorized use. This includes consumption in excess of the sanctioned or connected load, which violates the terms of the agreement and changes the consumer’s tariff category. ¶ 25–28, 43, 49–50

Section 127 — Right of Appeal

Section 127 provides that any person served with a final order of assessment under Section 126 may prefer an appeal against such final order to the prescribed appellate authority within the period of limitation as specified by regulation. Only the final order of assessment passed under Section 126(3) is appealable under Section 127; no appeal lies against

the provisional order or notice issued under Sections 126(1)–(2). A consumer who objects to the provisional assessment must file objections under Section 126(3) before the assessing officer; only after the final order is passed can the consumer appeal. ¶ 51

Contractual terms and regulatory provisions governing consumer obligations

The supply of electricity to a consumer is governed by the Electricity Act, 2003, State Electricity Acts, regulations framed thereunder, and the terms and conditions of supply in the form of a written agreement. The agreement executed between the licensee and consumer specifies the category of consumer (e.g., medium or large industry), the maximum contracted load (e.g., ‘below 110 KVA’), and minimum energy charges relatable to the contracted demand. Regulations 80, 82, and 106 of the Conditions of Supply prescribe: (1) consumer classification by category based on contract demand; (2) the licensee’s right to reclassify a consumer if consumption has exceeded the limit of that category; and (3) the prohibition on consumption in excess of approved contract demand. Breach of these contractual and regulatory conditions constitutes unauthorized use. ¶ 43–45, 49

Category change and its relationship to tariff and ‘purpose’

The tariff applicable to electricity supply is determined by the category to which the consumer belongs. When a consumer’s consumption exceeds the threshold of the contracted category (e.g., exceeds 110 KVA for medium industry), the consumer is reclassified to a higher category (e.g., large industry) with a higher tariff rate. This change of category is integral to the statutory and contractual scheme and reflects a change in the purpose or intensity of use. The reference to ‘category’ in Section 126(6) — which provides that assessment shall be at twice the tariff applicable for the relevant category — fully substantiates that a change of category caused by excess load consumption brings the defaulter within the mischief of the Explanation to Section 126. ¶ 51–52

Malpractices and pilferage of electricity under Section 126

The expression ‘malpractices’, though not defined in the Electricity Act, 2003, encompasses acts of pilferage and unauthorized consumption. Such malpractices normally do not amount to the criminal offence of theft under Section 135 but fall within the civil scope of Section 126. Cases of pilferage of electricity by adopting malpractices are within the jurisdiction of the Board under the terms and conditions of supply. The Board’s authority to impose penal charges or to disconnect electricity for such malpractices has been held not to violate Article 14 of the Constitution. ¶ 48

RATIO DECIDENDI

Consumption of electricity in excess of the sanctioned or connected load, in violation of the terms and conditions of supply and applicable regulations, constitutes ‘unauthorized use of electricity’ within the meaning of Section 126 of the Electricity Act, 2003. The expression ‘unauthorized use’ in the Explanation to Section 126 is to be interpreted broadly and purposively, having regard to the legislative objects of the Act, and is not limited to the enumerated examples; it encompasses any consumption in breach of statutory, regulatory, or contractual conditions, including consumption causing a tariff category change. The assessing officer has statutory power and jurisdiction to issue provisional and final orders of assessment at twice the applicable tariff. Sections 126 and 127 form a complete code providing for administrative assessment and statutory appeal: only a final order of assessment under Section 126(3) is appealable under Section 127, and a writ petition against a provisional order should be entertained only on grounds going to the jurisdiction of the authority, with remission to the assessing officer for final decision on merits.

ALSO HELD & OBITER

- **Dishonesty is not required to trigger Section 126; it is essential only for Section 135 theft.** Dishonesty is a state of mind implying an intent to cause wrongful gain or loss by unlawful, deceptive, or fraudulent means. While

Section 135 (theft) opens with ‘whoever, dishonestly’, requiring this mental element as an ingredient of the offence, Section 126 does not speak of any criminal intent or mens rea. Section 126 is a civil provision addressing the unauthorized use of electricity regardless of whether the consumer acted with intention or innocently exceeded the sanctioned load. This fundamental distinction is what allows Section 126 to operate as a swift administrative remedy without requiring proof of dishonest purpose. (¶ 16–22)

- **Voltage fluctuations and supply system degradation justify application of Section 126.** Overdrawal of electricity in excess of contracted load is prejudicial to the public at large, throwing the entire supply system out of gear, undermining its efficiency and efficacy, and causing voltage fluctuations affecting other consumers. These serious practical harms to the overall electricity distribution system support the application of Section 126 and justify the Board’s authority to assess charges at twice the tariff and to disconnect supply for non-compliance. (¶ 46)
- **The use of ‘means’ instead of ‘includes’ reflects intentional legislative drafting.** The legislature deliberately chose to use the word ‘means’ instead of ‘means and includes’ in the Explanation to Section 126, reflecting an intentional omission. This choice suggests that the legislature did not intend to restrict the definition exhaustively to the enumerated examples but rather to explain the concept while leaving room for other instances falling within the broader meaning of unauthorized use. (¶ 37–42)

DISPOSITION

The appeal is allowed. The judgment of the High Court of Orissa dated [date not specified in judgment] is hereby set aside. The matter is remanded to the Assessing Officer (Executive Engineer) with the following directions: (1) The respondent shall be afforded an opportunity to file objections, if any, against the provisional assessment order dated 25 July 2009 as contemplated under Section 126(3) of the Electricity Act, 2003; (2) The Assessing Officer shall pass a final order of assessment expeditiously in accordance with law and the principles laid down in this judgment; (3) The respondent shall retain the statutory right to prefer an appeal against the final order of assessment under Section 127 of the Electricity Act, 2003 within the prescribed period of limitation. The parties shall bear their own costs. ¶ 58–60

SIGNIFICANCE

This judgment is significant in establishing three propositions on electricity regulation, the distinction between civil and criminal remedies, and the proper scope of writ jurisdiction:

- **Broad interpretation of ‘unauthorized use’ prevents circumvention of regulatory protections.** The Court rejected the respondent’s argument that the statutory definition of unauthorized use must be confined to the five enumerated examples in the Explanation to Section 126. By adopting a purposive interpretation, the Court ensured that regulatory and revenue protections cannot be circumvented by technical arguments that an unauthorized conduct is simply ‘not listed’ in the statutory definition. This serves the legislative intent to prevent malpractices, misuse, and revenue loss through unauthorized electricity consumption.
- **Purposive construction applies to regulatory and fiscal statutes, not merely to beneficial legislation.** The judgment is significant in establishing that the principles of purposive construction (*ex visceribus actus, ut res magis valeat quam pereat*) apply even to statutes with regulatory, fiscal, and penal features. Courts must interpret such statutes to give effect to their legislative objects and avoid rendering them nugatory, even where strict textual construction might otherwise apply. This broadens the scope of purposive interpretation beyond merely ‘beneficial’ legislation.
- **Clear and important distinction between civil unauthorized use (Section 126) and criminal theft (Section 135).** The judgment clarifies that the Electricity Act, 2003 establishes two distinct regimes: Section 126 for civil

unauthorized use (not requiring mens rea, providing for swift administrative assessment), and Section 135 for criminal theft (requiring dishonest intention, providing for criminal prosecution and penalties). This distinction allows the regulatory authority to immediately address and penalize malpractices through civil assessment without the burden of proving criminal intent, while reserving criminal sanctions for truly dishonest abstraction of electricity.

- **Statutory appeal under Section 127 lies only against final orders, not provisional orders.** The judgment establishes the principle that the statutory alternative remedy under Section 127 applies only to final orders of assessment passed under Section 126(3), not to provisional orders or notices. This encourages consumers to exhaust the administrative remedy by filing objections before the assessing officer and prevents premature litigation based on provisional assessments. A writ petition against a provisional order may still be entertained on jurisdictional grounds, but the High Court should remit for final decision on merits.
- **Writ jurisdiction is bounded: High Court must address jurisdiction, not merits, when alternative remedy exists.** The judgment is significant in clarifying the proper scope of writ jurisdiction under Article 226 when an alternative statutory remedy exists. While the High Court may entertain a writ petition on jurisdictional grounds, it should not substitute its judgment for that of the specialized assessing officer on questions of fact or the application of law to the facts. The High Court erred by examining whether Section 126 actually applied and should have remitted the matter for the assessing officer's final decision. This respects the division of functions and the expertise of the specialized authority constituted under the Act.

TABLE OF AUTHORITIES

Authorities discussed in the judgment, with the treatment each received. 'Followed', 'Distinguished', 'Referred', and 'Applied' reflect the Court's own characterisation and the nature of the engagement.

AUTHORITY	PROPOSITION & HOW TREATED	TREATMENT
<i>Balram Kumawat v. Union of India & Ors.</i> (2003) 7 SCC 628 · Supreme Court of India	Discussed principles of statutory interpretation including contextual reading, the rule of ex visceribus actus (construction of the statute as a whole), and the principle that narrow and pedantic literal construction may not always be given effect to fiscal or penal statutes, which must instead be interpreted having regard to the subject matter and object of the law. The Court cited this case for the proposition that purposive interpretation can apply even to penal statutes.	Referred to; Relied on
<i>State of West Bengal v. Union of India</i> [1964] 1 SCR 371 · Supreme Court of India	Laid down the principle that the Court must ascertain the intention of the legislature by directing attention to the entire statute and comparing the clause to be construed with other parts of the law. This case was cited for the rule of contextual reading and ex visceribus actus.	Referred to
<i>R.S. Raghunath v. State of Karnataka and Anr.</i> AIR 1992 SC 81 · Supreme Court of India	Reiterated the principle that the clauses of a statute should be construed with reference to context and other provisions to make a consistent enactment. Applied the rule of ex visceribus actus.	Referred to

AUTHORITY	PROPOSITION & HOW TREATED	TREATMENT
<i>Superintendent and Remembrancer of Legal Affairs to Government of West Bengal v. Abani Maity</i> (1979) 4 SCC 85 · Supreme Court of India	Discussed the rule of exposition ex visceribus actus, holding that words in a statute often take their meaning from the context of the statute as a whole and should not be construed in isolation. This case was cited to establish that words such as ‘may’ in a statute may, in context, connote a legislative imperative.	Referred to
<i>Tinsukhia Electric Supply Co. Ltd. v. State of Assam</i> AIR 1990 SC 123 · Supreme Court of India	Held that courts strongly lean against constructions which reduce a statute to futility. The provision of a statute must be construed to make it effective and operative on the principle ‘ut res magis valeat quam pereat’. A statute is designed to be workable, and its interpretation should secure that object unless crucial omission or clear direction makes it unattainable.	Referred to
<i>K.V. Muthu v. Angamuthu Ammal</i> (1997) 2 SCC 53 · Supreme Court of India	A case dealing with interpretation of a definition using the word ‘means’ (‘member of his family’ under Tamil Nadu Rent Act). Despite ‘means’ seemingly limiting the definition to specified relatives, the Court held that a foster son could be included by purposive construction, observing that interpretation should aid the achievement of the Act’s purpose. Cited as a comparable example demonstrating that ‘means’ is not always exhaustive.	Referred to
<i>Union of India v. Prabhakaran Vijaya Kumar & Ors.</i> (2008) 9 SCC 527 · Supreme Court of India	Dealt with the interpretation of ‘untoward incident’ in Section 123(c) of the Railways Act, 1989. The provision used ‘means’ and listed specific categories; the Court applied purposive interpretation to include a person climbing on a train (not explicitly listed) to avoid depriving railway passengers of compensation. Cited as analogous to Section 126 ‘unauthorized use’.	Referred to
<i>Eureka Forbes Ltd. v. Allahabad Bank</i> (2010) 6 SCC 193 · Supreme Court of India	Examined the interpretation of the word ‘debt’ and held it to be a generic term of wide amplitude. The Court observed that general expressions used by the legislature (as opposed to specific, restricted expressions) indicate an intention to give wider meaning and cover a larger area of jurisdiction. Cited for the proposition that ‘any artificial means’ and ‘by a means not authorised’ in Section 126 are generic terms with wide amplitude.	Referred to
<i>Bhilai Rerollers & Ors. v. M.P. Electricity Board & Ors.</i> (2003) 7 SCC 185 · Supreme Court of India	Dealt with a case where a consumer drew electricity in excess of contracted load. The Board had the right under the general conditions of supply to levy higher charges. The Court held that the Board was entitled to raise the demand because overdrawal of extra load throws out of gear the entire supply system, undermining its efficiency and efficacy and causing voltage fluctuations. The Court rejected the consumer’s challenge.	Followed; Referred to

AUTHORITY	PROPOSITION & HOW TREATED	TREATMENT
<i>Orissa State Electricity Board & Anr. v. IPI Steel Ltd. & Ors.</i> (1995) 4 SCC 328 · Supreme Court of India	Took a similar view to Bhilai Rerollers regarding cases of excess load of consumption.	Referred to
<i>Hyderabad Vanaspathi Ltd. v. A.P. State Electricity Board & Anr.</i> (1998) 4 SCC 471 · Supreme Court of India	Dealt with the question of malpractices and pilferage of electricity which may not amount to theft but fall within the scope of regulatory action by the Board.	Referred to
<i>Association of Industrial Electricity Users v. State of A.P. & Ors.</i> (2002) 3 SCC 711 · Supreme Court of India	Held that fixation of tariff can hardly be subject of judicial review and that electricity supply permits differentiation according to consumer's load factor, power factor, total consumption during specified period, time of supply, and need for cross-subsidisation. The tariff may be determined so as to promote economic efficiency. The Court held that there is a direct relation between quantum of electricity demanded, supplied, and tariff rate, and that purpose would include by necessary implication the category under which electricity supply is provided.	Referred to
<i>Punjab State Electricity Board v. Vishwa Caliber Builders Private Ltd.</i> (2010) 4 SCC 539 · Supreme Court of India	Concerned whether the ombudsman had jurisdiction to regularize unauthorized electricity supply. The Court answered in the negative and held that consumption of electricity by the respondent beyond the sanctioned load amounted to unauthorized use of electrical energy, even where the excess arose from non-availability of infrastructure (transformer).	Referred to
<i>M.C. Mehta v. Union of India</i> (2006) 3 SCC 391 · Supreme Court of India	Dealt with interpretation of 'unauthorized development' under Section 31A of the Delhi Development Act, 1957. The Court held that development in violation of permission, approval, sanction, or conditions thereof constitutes unauthorized development. Used as an analogy to interpret 'unauthorized use of electricity' as use in violation of permission or authorization granted.	Referred to
<i>Dr. S. Dutt v. State of U.P.</i> AIR 1966 SC 523 · Supreme Court of India	Stated that a person who does anything with the intention to cause wrongful gain to one person or wrongful loss to another is said to do that dishonestly. Cited for the meaning of 'dishonest' under Section 135 of the Electricity Act.	Referred to
<i>Whirlpool Corporation v. Registrar of Trade Marks, Mumbai</i> (1998) 8 SCC 1 · Supreme Court of India	Extensively discussed the scope of Article 226 jurisdiction and when alternative remedy does not bar the exercise of writ jurisdiction. Held that the power to issue prerogative writs is plenary and not limited by other constitutional provisions, and that the alternative remedy bar operates with exceptions, particularly where the order is wholly without jurisdiction, vires of an Act is challenged, or natural justice is violated.	Referred to; Relied on

AUTHORITY	PROPOSITION & HOW TREATED	TREATMENT
<i>Union of India v. State of Haryana</i> (2000) 10 SCC 482 · Supreme Court of India	Held that where a fundamental legal question requires determination (e.g., whether a particular transaction is a sale), the matter need not be put through the mill of statutory appeals in hierarchy but should be determined by the High Court as a question of law.	Referred to

This digest is a condensed reference prepared from the text of the judgment. It is not a substitute for the full judgment and should be verified against the original before use.